

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kate Brattin	Team: Team # 1	CCRB Case #: 200710566	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/12/2007 6:22 PM	Location of Incident: § 87(2)(b) [REDACTED]	Precinct: 49	18 Mo. SOL 1/12/2009	EO SOL 1/12/2009	
Date/Time CV Reported Tue, 07/24/2007 3:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/24/2007 3:11 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. SGT Mervin Bennett	00255	920019	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Marco Sang	31868	931142	045 PCT
2. POM Carlos Martinez	00649	938947	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Mervin Bennett	Abuse: Sgt. Mervin Bennett threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]
B.SGT Mervin Bennett	Discourtesy: Sgt. Mervin Bennett spoke rudely to § 87(2)(b) [REDACTED]	[REDACTED]

Synopsis

On July 24, 2007, § 87(2)(b) filed a complaint with the Civilian Complaint Review Board regarding Sergeant Mervin Bennett of the 45th Precinct (Encl. 3A-B). On July 12, 2007, the complainant was working as a § 87(2)(b). The body of a young man was brought to § 87(2)(b) in the Bronx, after he was shot to death within the confines of the 45th Precinct. § 87(2)(b) was providing crowd control at the ambulance bay near § 87(2)(b). At about 6:20 PM, § 87(2)(b) was ordered by Sergeant Bennett to get medical assistance for the fainted family member of the deceased. Sergeant Bennett was not satisfied with the way § 87(2)(b) responded to his order, and asked § 87(2)(b) to go with him to a secluded area off a corridor inside the hospital, where the two men discussed their differences without resolving them. After leaving the corridor, Sergeant Bennett and § 87(2)(b) had an argument inside the § 87(2)(b) in the course of which Sergeant Bennett allegedly threatened to arrest § 87(2)(b) [Allegation A]. He then allegedly said to other officers, "I should collar his ass" [Allegation B].

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) of § 87(2)(b), was interviewed at the CCRB on August 10, 2007. At the time of his interview, § 87(2)(b) was a § 87(2)(b) Hispanic male, 5'11" tall and weighing 230 pounds, with brown hair, brown eyes, and tattoos on his forearms. § 87(2)(b)

§ 87(2)(g)

On July 12, 2007, § 87(2)(b) was stationed at § 87(2)(b). At about 6:22 PM, § 87(2)(b) who provided security at § 87(2)(b) called for additional personnel, and § 87(2)(b) responded. This was a common procedure. There were two sets of sliding doors between § 87(2)(b) and the ambulance bay. Upon his arrival, § 87(2)(b) saw about fifteen family members outside who were demonstrably grieving. The area was open to the public, and he estimated that there were 20-25 people there in total. § 87(2)(b) explained to him that § 87(2)(b) had been shot three times and had died. § 87(2)(b) went outside to perform crowd control. Present in addition to the family were § 87(2)(b) who were friends of the father, § 87(2)(b)'s supervisor, § 87(2)(b), and Sergeant Mervin Bennett of the 45th Precinct. Sergeant Bennett was leaning against a marked patrol car that said 45th Precinct on the side. The shooting had occurred in the 45th Precinct. Sergeant Bennett seemed angry and agitated from the moment § 87(2)(b) noticed him. § 87(2)(b) did not know what Sergeant Bennett's duties were at § 87(2)(b) but stated that he often saw NYPD officers at the hospital, escorting ambulances or vehicles of family members. § 87(2)(b) was not sure which family members Sergeant Bennett had escorted to the hospital.

§ 87(2)(b) checked inside at the § 87(2)(b), where the father of the deceased was punching the walls, and then went back outside. About five minutes later, a female civilian, presumably related to the deceased, passed out in front of the § 87(2)(b). Another female relative yelled the fainted woman's name and ran toward her. Sergeant Bennett said, "Get this girl out of here, tell her to take a walk. Get her ass out of here." § 87(2)(b) did not see any other officers from the 45th Precinct present. Sergeant Bennett was presumably talking to the hospital police, but none of them responded, because, as § 87(2)(b) explained in his interview at the CCRB, their policy in these types of situations is to allow the family members to vent. He then heard but did not see Sergeant Bennett yell, "Someone get a doctor or a nurse!" § 87(2)(b) went into the § 87(2)(b) to do so, after looking around and seeing no one else had gone yet. Inside, he heard an angry-sounding voice behind him say, "Officer, officer, officer!" He was not sure that he was being addressed, as there were several officers

from the § 87(2)(b) the NYPD, and § 87(2)(b) around him, but he turned to look. The person speaking was Sergeant Bennett. § 87(2)(b) read his name on his shield at this time. The sergeant was talking to § 87(2)(b) who guessed that Sergeant Bennett may have incorrectly thought he was walking away from the scene. § 87(2)(b) asked Sergeant Bennett what was going on. In an angry tone, Sergeant Bennett said, "Get a doctor or a nurse now!" (In the interview, § 87(2)(b) noted that Sergeant Bennett had no right to give him orders, and this created an awkward situation.) In the § 87(2)(b) § 87(2)(b) told Sergeant Bennett to keep it cool, and explained that he was getting assistance. He sensed that Sergeant Bennett didn't like what he had said because of the angry way the sergeant looked at him. § 87(2)(b) got the attention of the medical staff, who went outside to the § 87(2)(b) to assist.

Sergeant Bennett approached § 87(2)(b) at § 87(2)(b) and asked if § 87(2)(b) had a problem with him. § 87(2)(b) said that he did not. Sergeant Bennett suggested that they go somewhere to speak in privacy. The men went inside an open janitor's closet, which opened off of a nearby room. The door to the closet remained open. § 87(2)(b) was in the hallway right outside the room, and saw the two men go inside. Sergeant Bennett asked again if § 87(2)(b) had a problem and asked what was going on. § 87(2)(b) said that he did not have a problem, but did not think Sergeant Bennett should be treating him the way he was, because it was very unprofessional. Sergeant Bennett replied, "Oh, that's how it's gonna be." § 87(2)(b) was not sure what Sergeant Bennett meant by this remark. Sergeant Bennett did not make physically threatening motions, but he raised his chest toward § 87(2)(b) § 87(2)(b) was not afraid, but he felt threatened because of the sergeant's agitated and irate manner. He did not respond physically. He spoke to the sergeant calmly.

Sergeant Bennett went outside into the hallway, where § 87(2)(b) approached him. Sergeant Bennett said, "Don't worry about it, this is how it's gonna be, it's OK." § 87(2)(b) said, "That's not how we do things around here. Let's try to be a little more professional." § 87(2)(b) tone was polite and relaxed. Sergeant Bennett said, "If you have any problem, here's my shield number." He lifted his shield from his shirt, tilting it toward the men without actually removing it from the uniform. He said, "My name is Sergeant Bennett, I'm a sergeant at the 45th Precinct, and if you have a problem, call my CO. If not, I'll call him for you." He walked away toward the ambulance bay and began making a call on his cellular phone. § 87(2)(b) believed that he was indeed calling his CO, and thought that the incident was now over. He could not hear the phone conversation that ensued.

§ 87(2)(b) began to bring the family of the deceased young man into the § 87(2)(b) to view the body. § 87(2)(b) stayed outside the ambulance bay. § 87(2)(b) saw two NYPD officers, identified by the investigation to be Officer Marco Sang and Officer Carlos Martinez, both assigned to the 45th Precinct, peek into the hallway from the § 87(2)(b). This was the only time § 87(2)(b) saw these officers. He was verbally preparing the father of the deceased to see the body, surrounded by eight to ten family members and friends, in the corridor outside the double doors that lead into the § 87(2)(b) § 87(2)(b) may have also been present, as was a man named Vincent from housekeeping. Sergeant Bennett came in suddenly from the ambulance bay and said loudly to everyone present. "Whatever you guys need, if there's anything that we can do for you, if there's anything we can assist you with, you guys count on us. We're taking charge here, not these toy security cops they have here." § 87(2)(b) looked away as Sergeant Bennett said this, and then looked at the family members, who were shaking their heads in dismay. No one responded to Sergeant Bennett. Officer Sang and Officer Martinez were not present. After those words, Sergeant Bennett went into the § 87(2)(b) and approached § 87(2)(b) § 87(2)(b) § 87(2)(b) believed that § 87(2)(b) was friends with several NYPD officers, but was not sure if he knew Sergeant Bennett. § 87(2)(b) could not hear them talk, and did not know if they were talking about him. As he watched through the doors, he saw § 87(2)(b) tap Sergeant Bennett on the shoulder, as if to signify that it was going to be OK.

§ 87(2)(b) went into the ER to speak to Sergeant Bennett. The family of the deceased was outside with § 87(2)(b). When he was done talking to § 87(2)(b) Sergeant Bennett approached, very close to § 87(2)(b)'s face, and asked, "Is there a problem that you have with me?" § 87(2)(b) said, "No I don't, Sergeant, but you're being very unprofessional. We wear the same uniform, we should work hand in hand." There were family members passing by at that time. § 87(2)(b) thought that a nurse had probably told them that they could come in. He stated that Sergeant Bennett was screaming in his face as the family looked on in surprise. Sergeant Bennett said,

“Oh, so now you’re standing toe-to-toe?” § 87(2)(b) tapped § 87(2)(b) on the shoulder and told him to forget about it, that they would handle it later. § 87(2)(b) said that he didn’t want to walk away, that it had to be resolved now. § 87(2)(b) tapped him on the shoulder again, repeating the same advice, and this time, § 87(2)(b) walked away. As he did so, Sergeant Bennett said loudly, “I should collar your ass.” § 87(2)(b) stated that he understood “collar” in this instance as police jargon for “arrest.” Sergeant Bennett was five or six feet away from § 87(2)(b) at the time, and the comment was directed at § 87(2)(b) although he was not looking at Sergeant Bennett when he said it. Housekeeping staff, doctors, and nurses were present. Patients looked out of their rooms. § 87(2)(b) was the only other § 87(2)(b) present. § 87(2)(b) could not name with certainty any of the other staff members who were there.

§ 87(2)(b) believed that Sergeant Bennett was actually going to arrest him, although he had not done anything for which he could be arrested. He ignored the comment and brought the family members inside the § 87(2)(b) to view the body. There was a curtain separating the § 87(2)(b) from the § 87(2)(b). § 87(2)(b) could hear Sergeant Bennett on the other side saying, “I should arrest him. As a matter of fact, I have my boys here.” § 87(2)(b) believed that he was speaking to § 87(2)(b) who did not respond. He believed that Sergeant Bennett then called for the two officers from the 45th Precinct, Officer Sang and Officer Martinez who came from § 87(2)(b). He did not hear Sergeant Bennett call over his radio, but stated that the likelihood of the officers appearing in the § 87(2)(b) independently was small. § 87(2)(b) did not hear Officer Sang or Officer Martinez say anything other than “What’s up, what’s going on,” when they first arrived. Sergeant Bennett said, presumably to Officer Sang and Officer Martinez, “We’ve got this guy here, I think I should arrest him. This guy must not like his job.” The officers were six or seven feet away on the other side of the curtain. § 87(2)(b) could hear them very well.

§ 87(2)(b) left the § 87(2)(b) another way so as to avoid another encounter. He returned to his post at the § 87(2)(b), and called § 87(2)(b) five minutes later. § 87(2)(b) spoke with § 87(2)(b) and, because their captain was out sick, instructed § 87(2)(b) to call 911. § 87(2)(b) Sergeant Bruen from the 49th Precinct, where the hospital was located, responded. § 87(2)(b) did not speak to Sergeant Bruen, and was unsure if any paperwork was filled out. As far as § 87(2)(b) knew, Sergeant Bruen did not speak to Sergeant Bennett.

§ 87(2)(g)

§ 87(2)(b) filled out a written (b) (4) Police Crime and Incident Report (Encl. 4A-D), which was not dated, but was most likely completed soon after the incident on July 12, 2007. In the report, § 87(2)(b) stated that Sergeant Bennett said, “I should have collared his ass,” to others in the § 87(2)(b) after § 87(2)(b) had walked away, and did not allege that Sergeant Bennett threatened him directly.

Results of Investigation:

Additional Civilian Statements

§ 87(2)(b) :

The undersigned contacted § 87(2)(b) s supervisor, § 87(2)(b) who agreed to be interviewed by the CCRB at § 87(2)(b) on September 24, 2007, and to make his officers available to the investigation. § 87(2)(b) was not at § 87(2)(b) on September 24, but the investigation was able to obtain a copy of the § 87(2)(b) Police Department Supplementary Report (Encl. 7A-B) completed by § 87(2)(b) in regards to the incident on July 12, 2007. The report was not dated, but § 87(2)(b) referred to it when he first called the CCRB on July 24, 2007.

§ 87(2)(b) report states that “while Sergeant Bennette [sic] was at the § 87(2)(b) he appeared agitated and was unduly harsh and insensitive with the grieving relatives.” The report is consistent with § 87(2)(b) s account of the encounter between § 87(2)(b) and Sergeant Bennett in the ambulance bay. § 87(2)(b) stated that he observed Sergeant Bennett berating § 87(2)(b) within sight and hearing distance of the family members inside the hospital.

The report states that Sergeant Bennett positioned NYPD officers as guards inside the ER entrance, which § 87(2)(b) described as an extreme security measure “not requested by any

§ 87(2) authority” and “conducted in an effort to humiliate members of the Hospital Police Department.”
§ 87(2)(b) made it clear that he knew of, but did not personally witness, the alleged threat of arrest in the § 87(2)(b)

§ 87(2)(b)
§ 87(2)(b) was interviewed at § 87(2)(b) on September 24, 2007 (Encl.8A-D). He was a tall, heavy African-American male with short curly black hair and a moustache, and stated that he had worked for the § 87(2) for five and a half years.

§ 87(2)(b) stated that on the evening of July 12, 2007, § 87(2)(b) was brought in to § 87(2)(b) in the Bronx. He was dead on arrival. § 87(2)(b) escorted the father to the Command Center to be told that his son had died. A female relative who had been waiting outside at the ambulance bay was trying to get inside the hospital and fainted, hitting her head as she fell. § 87(2) officers, family members of the deceased, and two plainclothes NYPD detectives were present, one male and one female. An NYPD sergeant, who § 87(2) believed to be from the 45th Precinct, identified by the investigation as Sergeant Bennett, called out to § 87(2) officers to get medical staff to assist the woman. § 87(2)(b) went to do so. As he returned to the ambulance bay, he heard the sergeant yelling at § 87(2)(b) to listen to him. § 87(2)(b) had his back turned to Sergeant Bennett and was walking away. At this point, § 87(2)(b) was bringing a gurney outside for the unconscious female. As he went inside the hospital again, he heard the sergeant ask § 87(2)(b) to come with him to a secluded area, a small maintenance closet located off the corridor that leads from the ambulance bay to the ER. Both men stood in the corridor just outside the closet. § 87(2)(b) did not hear what was said, but after leaving the area, the sergeant told § 87(2)(b) “People like you get arrested; you’d better tell your boy that.” § 87(2)(b) believed that he also said something about § 87(2)(b) being a “security-minded officer.” § 87(2)(b) took this to be an insult based on the fact that § 87(2) officers do not carry firearms, but did not respond to Sergeant Bennett. There were about twenty-five § 87(2)(b) present at this time.

§ 87(2)(b) went back to the ambulance bay area. § 87(2)(b) told § 87(2)(b) that the sergeant wanted to arrest him, § 87(2)(b) for no reason. Sergeant Bennett was not present at this time. Back inside, the sergeant approached § 87(2)(b) and warned him that he had better talk to § 87(2)(b). Sergeant Bennett was speaking loudly, and was in “gang kind of mode.” He said, “You’ve got your boys; I’m going to get my boys,” presumably speaking about two uniformed NYPD officers, identified by the investigation as Officer Sang and Officer Martinez, who were in the ER. § 87(2)(b) found this threatening. He never heard the sergeant call for backup.

When first asked during his interview, § 87(2)(b) stated that he did not witness any verbal confrontation between § 87(2)(b) and the sergeant in the ER, and that the only time the two spoke was in the maintenance closet. Later, he stated that he did hear the sergeant tell § 87(2)(b) he would arrest him in the ER. He indicated that this took place just inside the door of the ER, § 87(2)(b). Sergeant Bennett stepped toward § 87(2)(b) until they were six inches apart, and spoke in a very loud tone. § 87(2)(b) stated that he did not remember exactly what the sergeant said. § 87(2)(b) did not react or say anything. He seemed shocked. § 87(2)(b) advised the sergeant to relax. The sergeant said, “No, you talk to your boy before I lock his ass up.” The sergeant continued to talk about arresting § 87(2)(b) repeating, “I’m gonna lock him up, I’m gonna lock him up.” He never mentioned on what charges § 87(2)(b) could be arrested. § 87(2)(b) believed that he was speaking to everyone in the room, including the NYPD officers and hospital staff. § 87(2)(b) could not remember which § 87(2) officers were there, but he believed § 87(2) § 87(2)(b) and § 87(2) § 87(2)(b) to have been among them. There were also family members of the deceased and § 87(2)(b) in the ER. There were about 25 people in that section of the ER. By this time, § 87(2)(b) was no longer present. § 87(2)(b) believed that § 87(2) § 87(2)(b) had told him to leave. No other § 87(2) officers attempted to get involved in a confrontation with the sergeant.

While the sergeant was leaving the ambulance bay area, § 87(2)(b) saw § 87(2)(b) stop the sergeant and explain to him that procedure dictated that he should speak to an officer’s supervisor before speaking to the officer directly. The sergeant said that he was going to call his own commanding officer at the precinct. This was the last § 87(2)(b) saw of him. He did not hear the sergeant speak to any other § 87(2) officers or any civilians. § 87(2)(b) believed that the

sergeant remained at § 87(2)(b) to coordinate transportation for family members of the deceased to the 45th Precinct.

Officer Statements

Sergeant Mervin Bennett:

Sergeant Mervin Bennett, a § 87(2)(b)-old African-American male who is 5'7" tall and weighs 180 pounds, bald, with brown eyes, was interviewed at the CCRB on September 6, 2007 (Encl. 10A-C). Sergeant Bennett worked from 4 PM-12 PM on July 12, 2007 as Patrol Supervisor. He was dressed in uniform and was assigned to a marked RMP with Officer Joseph Martinez. He had no memo book entries regarding this incident.

Sergeant Bennett recalled that a homicide occurred inside the confines of the 45th Precinct on July 12, 2007 in which § 87(2)(b) was shot. Two officers on the day tour at the 45th Precinct responded, but were involved in a motor vehicle accident and taken to the Emergency Room at § 87(2)(b). Sergeant Bennett dispatched Officer Marco Sang and Officer Carlos Martinez to § 87(2)(b) to assist the officers and to transport them upon their release. Then, Sergeant Bennett responded to the hospital to check on the injured officers. At § 87(2)(b) he was met by a group of about 25-30 § 87(2)(b) and family members of the shooting victim. They had gathered outside the hospital near the entrance to the Emergency Room to wait for the arrival of the father of the victim, who did not know that his son was dead. § 87(2)(b) They asked Sergeant Bennett if he was there to talk to them. He explained that he was not, but that his detectives would speak to them. He went to check on his injured officers, and then responded back in his capacity as supervisor of the detectives who were on the shooting case. He told the assembled civilians that if they needed anything, they should let him know.

When he returned outside, Sergeant Bennett noticed that there were three or four § 87(2)(b) officers on the scene, including § 87(2)(b) who he had met previously, and § 87(2)(b). He assumed the § 87(2)(b) officers were there for crowd control. The father of the victim arrived after Sergeant Bennett had been outside observing for ten to fifteen minutes, and was taken inside § 87(2)(b) to be informed of the death of his son. Some of the mixed group of § 87(2)(b) and family members were inside and some were still outside as the father was brought into the hospital. Several members of the group outside were becoming obviously upset, but not disruptively so.

Sergeant Bennett observed § 87(2)(b) putting on rubber gloves, leading the sergeant to believe that he was about to take some kind of physical action against the family members, which Sergeant Bennett felt would have been inappropriate, since they were far from the entrance and not bothering anyone. He found the sight disturbing, but did not say anything to § 87(2)(b) at this point, or see exactly what he did after "gloving up." A young woman, presumably a relative of the deceased, passed out. Sergeant Bennett did not tell anyone to "get her the hell out of here." He turned to § 87(2)(b) and asked him to get a nurse outside. § 87(2)(b) was close to Sergeant Bennett, but was not looking at him at the time. He started to walk away without looking at Sergeant Bennett. The sergeant said, "Officer, officer, officer," raising his voice to get § 87(2)(b)'s attention. There was no indication that the § 87(2)(b) officer was going to get medical attention for the woman. § 87(2)(b) entered the hospital ER, and Sergeant Bennett followed, and asked what was going on. § 87(2)(b) explained that he was going to get help.

Sergeant Bennett did not think that § 87(2)(b) had behaved appropriately, and searched for a private place where he could tell him that. Two to three minutes after Sergeant Bennett saw § 87(2)(b) enter the ER, he took him aside. They went to an area described by Sergeant Bennett as being located in a passageway to the right as one enters the ER. § 87(2)(b) stood inside a small closet and Sergeant Bennett, who would not fit inside the closet at the same time, stood outside with § 87(2)(b)'s supervisor, an § 87(2)(b) officer wearing a white shirt, identified by the investigation as § 87(2)(b). Sergeant Bennett admitted that he was upset when they spoke, and stated that § 87(2)(b)'s demeanor was "very tense" and "aggressive." Sergeant Bennett noted that § 87(2)(b) was bigger than he, and that the § 87(2)(b) officer was standing with his chest out and his shoulders thrust back, but stated that he did not feel threatened at that time. Sergeant Bennett advised § 87(2)(b) that he would appreciate it if § 87(2)(b) would respond with more urgency to the death of a relative of § 87(2)(b), saying that this was what he would wish if the shooting victim was a relative of either of them. § 87(2)(b) responded by expressing his belief that

Sergeant Bennett was not behaving in a professional manner. Sergeant Bennett advised § 87(2)(b) in front of § 87(2)(b) to call his commanding officer at the 45th Precinct. § 87(2)(b) expressed to Sergeant Bennett that he did not want to go through those channels.

Sergeant Bennett then called his commanding officer, Captain William McSorley, informing the captain that he was at § 87(2)(b) that § 87(2)(b) and family members were present, and that he had had an incident with an § 87(2)(b) officer. He told Captain McSorley that he had advised the § 87(2)(b) officer and his supervisor to call the precinct if they believed that he was behaving unprofessionally. Sergeant Bennett stated that he called his commander specifically because of the incident with § 87(2)(b) per Patrol Guide procedure. He also made calls to arrange for police escorts and transportation for the family members of the shooting victim. Sergeant Bennett again told the family members who were inside that if they needed anything, he would get it for them. He informed them that this was a police matter, that he was the supervisor from the precinct of occurrence, and that if they needed assistance, they could come to him directly. He did not refer to § 87(2)(b) Police Officers as “toy security cops” or anything similar.

Sergeant Bennett then left the corridor and walked into the Emergency Room. § 87(2)(b), family members of the deceased, and Officer Sang and Officer Martinez of the 45th Precinct were present, as well as § 87(2)(b) and two other § 87(2)(b) officers. The body of the shooting victim was less than five feet from Sergeant Bennett. It was a “sensitive scene.” Sergeant Bennett spoke to § 87(2)(b) about the encounter with § 87(2)(b) telling § 87(2)(b) that § 87(2)(b)'s conduct had been inappropriate, and he did not appreciate how § 87(2)(b) had responded to the scene outside. § 87(2)(b) apologized for § 87(2)(b)'s actions, and gave Sergeant Bennett a business card. The two other § 87(2)(b) officers – one male and one female – also apologized.

While Sergeant Bennett and § 87(2)(b) were speaking, § 87(2)(b) came through the ER entrance and approached him. Family members were still entering the ER, and the father was being brought in to see his son's corpse. Sergeant Bennett said to § 87(2)(b) “I do not want to speak to you. You were wrong; I don't want to talk to you.” § 87(2)(b) approached to a distance of three or four feet in an aggressive manner, making gestures with his hands raised that Sergeant Bennett interpreted as threatening. § 87(2)(b) still seemed to be talking about how unprofessional Sergeant Bennett had been. § 87(2)(b) said, “He thinks we're toy cops.” Sergeant Bennett believed him to be trying to bait the other § 87(2)(b) officers. As far as he recalled, Sergeant Bennett had not mentioned the term “toy security cops” himself. Sergeant Bennett asked § 87(2)(b) to remove § 87(2)(b) from his presence. He stated that he believed that if he spoke to § 87(2)(b) the situation could escalate. At this point, Sergeant Bennett walked away. He did not recall saying anything about arresting § 87(2)(b) while he was present. He did not say, “I should collar your ass” to § 87(2)(b). After walking away, Sergeant Bennett lost track of § 87(2)(b) and did not see where he went. He did not see him again. After § 87(2)(b) left, Sergeant Bennett and the other § 87(2)(b) officers discussed what had happened. Sergeant Bennett stated that he might have said, “He could have been arrested” and “I might arrest him” to other people present, specifically to § 87(2)(b) who was sitting to his right. Sergeant Bennett did not remember saying the words, “I should have collared his ass.” However, he stated that § 87(2)(b)'s demeanor and attitude, especially under the circumstances of a “sensitive situation” would have merited an arrest for disorderly conduct.

Sergeant Bennett was not aware that 911 was called regarding this incident.

Officer Carlos Martinez:

Officer Carlos Martinez, a § 87(2)(b)-old Hispanic male who is 6' tall and weighs 215 pounds, with green eyes and black hair, was interviewed at the CCRB on September 28, 2007 (Encl. 12A-B). Officer Martinez worked a 15:00-23:35 tour on July 12, 2007. He was assigned to patrol Sector E with Officer Marco Sang. He was dressed in uniform and assigned to marked patrol car #2411. Officer Martinez's memo book (Encl. 11A-B) reads that at 15:28, he was ordered by Sergeant Bennett to transport two members of service to § 87(2)(b) for treatment after an RMP accident. He had no entries specifically about the incident between § 87(2)(b) and Sergeant Bennett.

Officer Martinez stated that he transported two members of service to the Emergency Room of the hospital on July 12. The injured officers were assigned rooms off the ER. Officer Martinez was positioned in one of these rooms, waiting for the members of service and watching their firearms. The room was

separated from the main Emergency Room by a door. He did not leave the room, and did not witness any interaction between Sergeant Bennett and any § 87(2)(b) police officers.

As Officer Martinez was watching the NYPD officers, Sergeant Bennett approached, and informed him that he needed Officer Martinez to assist him with guarding the main Emergency Room door, which led from the ER outside. He informed Officer Martinez that he had had an argument with an § 87(2)(b) officer. Officer Martinez learned that there had been a shooting. Family members and friends of the shooting victim were trying to enter the door, which was not being properly watched by hospital security, so Sergeant Bennett detailed Officer Martinez and Officer Sang to secure the door. Officer Martinez believed that this assignment was directly related to the problems Sergeant Bennett had been having with the § 87(2)(b) officer. Officer Martinez did not see the § 87(2)(b) officer, who he believed to have been removed from the scene by a supervisor, and did not recognize § 87(2)(b) § 87(2)(b) from photographs shown to him during the interview at the CCRB. He and Officer Sang watched the door for fifteen to twenty minutes. Officer Martinez did not view any interactions between § 87(2)(b) officers and Sergeant Bennett while he was guarding the door, and did not speak to any § 87(2)(b) officers himself.

Officer Marco Sang:

Officer Marco Sang, a § 87(2)(b)-old Hispanic male who is 5'8" tall, bald, with brown eyes and eyeglasses, was interviewed at the CCRB on September 28, 2007 (Encl. 14A-B). On July 12, 2007, Officer Sang worked a 16:00-24:00 tour. He was assigned to patrol Sector E with Officer Carlos Martinez. He was dressed in uniform and was assigned to a marked patrol car. Officer Sang's memo book (Encl. 13A-B) notes that at 15:20, he transported members of service to § 87(2)(b). At 19:00, they returned to the stationhouse. He had no entries about the incident between § 87(2)(b) and Sergeant Bennett.

Officer Sang recalled that two members of service were involved in an RMP accident on July 12, and had to be taken to the hospital. Officer Sang and his partner Officer Martinez accompanied them to § 87(2)(b) and, once there, stood guard at their rooms. Officer Sang stood outside the rooms. The door to the room was open. He did not recall how long he stood outside. Officer Sang viewed Sergeant Bennett speaking with an § 87(2)(b) police officer in the Emergency Room entrance. He could not hear what they were saying, and could not recall seeing either Sergeant Bennett or the § 87(2)(b) officer move his hands or body in any way. He did not hear Sergeant Bennett threaten to arrest the § 87(2)(b) officer. Officer Sang stated that he was standing approximately fifteen feet from the two men. Both officers were speaking in a low tone of voice. They did not speak for long. Family members and § 87(2)(b) were also present in the ER while Sergeant Bennett and the § 87(2)(b) officer spoke. Officer Sang did not recall seeing other § 87(2)(b) or NYPD officers. He could not recall how many people were present, and could not estimate the number. The family members were crying. Officer Sang believed that they wanted to see the body. He did not see any violent behavior. Officer Sang did not have any personal interaction with these family members.

Sergeant Bennett and the § 87(2)(b) officer finished speaking and Sergeant Bennett told Officer Sang to get Officer Martinez, who was either inside or outside the room where the injured members of service had been placed. Afterward, Officer Sang and Officer Martinez stood between the doors of the entrance of the ER. Officer Sang did not recall seeing the § 87(2)(b) officer with whom Sergeant Bennett had been conversing leave the room. Officer Sang never heard Sergeant Bennett discuss the incident with the § 87(2)(b) officer.

Police Department Documents

The 45th Precinct Roll Call from July 12, 2007 (Encl. 15A-C), indicates that Sergeant Bennett was the Tour 3 supervising officer, assigned to RPM 1878, and that Officer Sang and Officer Martinez were scheduled to work from 3:00 PM to 11:35 PM. They were both assigned to patrol Sector EFG in RMP 2411.

Civilian CCRB History

§ 87(2)(b) has never before filed a complaint with the CCRB. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Police Officer CCRB History

Sergeant Mervin Bennett has been an employee of the New York City Police Department for nine years. He has never been the subject of an allegation of misconduct that was substantiated by the CCRB.

Conclusions and Recommendations

Officer Identification and Pleading of Allegations

§ 87(2)(b) identified Sergeant Bennett after observing his name on his uniform nameplate at the time of the incident, and Sergeant Bennett admitted to having had a confrontation with § 87(2)(b). § 87(2)(b) did not make allegations against any other officers. § 87(2)(g)

Undisputed Facts

As noted above, it is undisputed that on July 12, 2007, Sergeant Bennett of the New York City Police Department responded to § 87(2)(b) after a young man was shot to death in the 45th Precinct. Believing that § 87(2)(b) was not performing his duties appropriately, Sergeant Bennett reprimanded the § 87(2)(b) officer. It is undisputed that the two men later spoke within § 87(2)(b).

Disputed Facts:

§ 87(2)(g)

Assessment of Evidence

Both the complainant and the subject officer mentioned that there were many independent witnesses to the confrontation § 87(2)(b). However, due to the circumstances of the death of the shooting victim, the investigation deemed it inappropriate to contact family members who might have been present. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Sergeant Bennett did not recall threatening § 87(2)(b) with arrest directly, but admitted that he might have spoken to other § 87(2) officers about arresting § 87(2)(b) while the man was no longer present in the ER. The sergeant stated that at some point, he lost track of where § 87(2)(b) was in the ER; Sergeant Bennett believed that he had left the area before any discussion of arrest began. § 87(2)(b) stated that he had gone into § 87(2)(b), but could still hear what was said outside in the ER. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Abuse of Authority: Sergeant Mervin Bennett threatened to arrest § 87(2)(b)

In his complaint to the CRB, § 87(2)(b) alleged that Sergeant Mervin Bennett unlawfully threatened to arrest him. § 87(2)(g)

Allegation B: Discourtesy: Sergeant Mervin Bennett spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that Sergeant Bennett spoke both directly and indirectly about “collaring [his] ass.” § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: